

ORI No: NY059023J
Order No: 2021-003506
NYSID No: _____

At a term of the Family Court of the State of New York,
held in and for the County of Westchester, at Yonkers Family Court
131 Warburton Avenue, Yonkers, NY 10701, on May 19, 2021

PRESENT: Honorable Michelle I. Schauer

In the Matter of a FAMILY OFFENSE Proceeding

Tara Katelyn Walsh (DOB: 09/10/1984),
Petitioner

- against -

Stephen Grant Russell (DOB: 12/04/1973),
Respondent

File # 154703

Docket # O-12635-19

Temporary Order of Protection

Both Parties Present in Court

NOTICE: YOUR FAILURE TO OBEY THIS ORDER MAY SUBJECT YOU TO MANDATORY ARREST AND CRIMINAL PROSECUTION, WHICH MAY RESULT IN YOUR INCARCERATION FOR UP TO SEVEN YEARS FOR CRIMINAL CONTEMPT, AND/OR MAY SUBJECT YOU TO FAMILY COURT PROSECUTION AND INCARCERATION FOR UP TO SIX MONTHS FOR CONTEMPT OF COURT. IF YOU FAIL TO APPEAR IN COURT WHEN YOU ARE REQUIRED TO DO SO, THIS ORDER MAY BE EXTENDED IN YOUR ABSENCE AND THEN CONTINUES IN EFFECT UNTIL A NEW DATE SET BY THE COURT.

THIS ORDER OF PROTECTION WILL REMAIN IN EFFECT EVEN IF THE PROTECTED PARTY HAS, OR CONSENTS TO HAVE, CONTACT OR COMMUNICATION WITH THE PARTY AGAINST WHOM THE ORDER IS ISSUED. THIS ORDER OF PROTECTION CAN ONLY BE MODIFIED OR TERMINATED BY THE COURT. THE PROTECTED PARTY CANNOT BE HELD TO VIOLATE THIS ORDER NOR BE ARRESTED FOR VIOLATING THIS ORDER .

A petition under Article 8 of the Family Court Act, having been filed on March 27, 2019 in this Court and good cause having been shown, and Stephen Grant Russell having been present in Court and advised of the issuance and contents of this Order.

NOW, THEREFORE, IT IS HEREBY ORDERED that Stephen Grant Russell (DOB:12/04/1973) observe the following conditions of behavior:

[01] Stay away from:

[A] Tara Katelyn Walsh (DOB: 09/10/1984);

[B] the home of Tara Katelyn Walsh (DOB: 09/10/1984);

[E] the place of employment of Tara Katelyn Walsh (DOB: 09/10/1984);

[14] Refrain from communication or any other contact by mail, telephone, e-mail, voice-mail or other electronic or any other means with Tara Katelyn Walsh (DOB: 09/10/1984);

[02] Refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, strangulation, criminal obstruction of breathing or circulation, disorderly conduct, criminal mischief, sexual abuse, sexual misconduct, forcible touching, intimidation, threats, identity theft, grand larceny, coercion, unlawful dissemination or publication of intimate image(s) or any criminal offense against Tara Katelyn Walsh (DOB: 09/10/1984);

It is further ordered that this temporary order of protection shall remain in force until and including June 01, 2021, but if you fail to appear in court on this date, the order may be extended and continue in effect until a new date set by the Court.

Dated: May 19, 2021

ENTER



Michelle I. Schauer
20210519153440MSCHAUER652A0594C632804874B72BE51055483
Court S

Honorable Michelle I. Schauer

PURSUANT TO SECTION 1113 OF THE FAMILY COURT ACT, AN APPEAL FROM THIS ORDER MUST BE TAKEN WITHIN 30 DAYS OF RECEIPT OF THE ORDER BY APPELLANT IN COURT, 35 DAYS FROM THE DATE OF MAILING OF THE ORDER TO APPELLANT BY THE CLERK OF COURT, OR 30 DAYS AFTER SERVICE BY A PARTY OR THE ATTORNEY FOR THE CHILD UPON THE APPELLANT, WHICHEVER IS EARLIEST.

The Family Court Act provides that presentation of a copy of this order of protection to any police officer or peace officer acting pursuant to his or her special duties authorizes, and sometimes requires such officer to arrest a person who is alleged to have violated its terms and to bring him or her before the court to face penalties authorized by law.

Federal law requires that this order is effective outside, as well as inside, New York State. It must be honored and enforced by state and tribal courts, including courts of a state, the District of Columbia, a commonwealth, territory or possession of the United States, if the person restrained by the order is an intimate partner of the protected party and has or will be afforded reasonable notice and opportunity to be heard in accordance with state law sufficient to protect due process rights (18 U.S.C §§ 2265, 2266).

It is a federal crime to:

- cross state lines to violate this order or to stalk, harass or commit domestic violence against an intimate partner or family member;
- buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition while this Order remains in effect (Note: there is a limited exception for military or law enforcement officers but only while they are on duty) ; and
- buy, possess or transfer a handgun, rifle, shotgun or other firearm or ammunition after a conviction of a domestic violence-related crime involving the use or attempted use of physical force or a deadly weapon against an intimate partner or family member, even after this Order has expired (18 U.S.C. §§ 922(g)(8), 922(g)(9), 2261, 2261A, 2262).

Check Applicable Box(es):

☒ Party against whom order was issued was advised in Court of issuance and contents of Order

☒ Order personally served in Court upon party against whom order was issued

☐ Service directed by other means[specify]: _____

☐ [Modifications or extensions only]: Order mailed on [specify date and to whom mailed]:

☐ Warrant issued for party against whom order was issued[specify date]: _____

☐ ADDITIONAL SERVICE INFORMATION [specify]: _____